DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

MEMORANDUM FOR RECORD

To: Lamon Begay, Lab Informaticist
Cc: Suzanne Belzer, Acting Chief of Pathology
Cc: Adrienne Frazier, Manager, Laboratory
Cc: Charisse Holiday, Chief Professional Officer
From: Hon. Kevin D. Turnage, MSN, RN, NHDP-BC, NPD-BC, AMB-BC, NE-BC
Policy and Procedure Officer, Nurse Consultant
Date: May 23, 2025
Subject: Rejection of Clinical Laboratory Reporting of Infectious Diseases Policy (PolicyStat ID: 18164239)

Dear Mr. Begay,

Following a detailed review, the policy titled *Clinical Laboratory Reporting of Infectious Diseases to the Arizona Department of Health Services* is **not approved** at this time due to noncompliance with the Phoenix Service Unit (PSU) Policy Management policy (PolicyStat ID: 16791609). The following deficiencies are identified, with direct references to the PSU policy language.

1. Absence of Required References

Policy Language – Section F.1.e:
"Comply with current accreditation standards, higher-headquarter policy within the IHS and federal government, regulations, laws, and evidence-based best practices and guidelines."

Issue:
The policy lacks a **Reference section entirely** and does not cite any federal regulations, accreditation standards, or evidence-based public health reporting guidance. This omission fails to establish traceability or credibility for the procedures described and does not meet PSU documentation standards.

Required Action:
Include a formal **Reference section** citing authoritative sources such as:

- Arizona Administrative Code R9-6-204
- CDC's National Notifiable Diseases Surveillance System (NNDSS)
- CLIA (Clinical Laboratory Improvement Amendments)
- Relevant IHS directives and federal reporting mandates
- HIPAA and data privacy/security requirements

2. Missing Staff Training and Competency Requirements

Policy Language – Sections F.1.i–k and F.2.j:
Requires that "staff are informed, trained, and competent when implementing new and revised documents."
Mandates education and attestation when documents "require a change in behavior or workflow" or when "an accreditation standard or a regulation requires documentation of education."

Issue:
The policy does not include requirements for staff training or competency validation related to infectious disease reporting, RPMS functions, or the use of iCare and secure transmission systems.

Required Action:
Include training expectations for Laboratory Informaticists, RPMS users, and public health nursing staff. Detail how training will be delivered, documented, and validated for compliance and competency.

3. Lack of Documented Quality Control and Audit Processes

Policy Language – Section F.1.m:
"Actively monitor for updates in evidence-based practices, clinical guidelines, regulatory requirements, and accreditation standards relevant to the content of assigned documents."

Issue:
The policy does not describe how data reporting systems (e.g., SHDR, iCare exports, secure email) will be audited or validated for accuracy, timeliness, or completeness. There is no mention of how compliance will be measured, nor how system failures (e.g., email interruptions, incorrect test taxonomies) will be identified or addressed.

Required Action:
Include procedures for internal audits, error tracking, and quality assurance to ensure accurate and continuous reporting to ADHS. These procedures should align with federal reporting requirements and ensure the laboratory remains responsive to public health reporting obligations.

4. Ambiguity in Secure Transmission and Data Retention Protocols

Policy Language – Sections F.1.a and F.1.b:
Requires that "documents are managed with timely updates, revisions, approvals, education, and implementation," and "ensure reliable outcomes, reduce variation, and mitigate risk."

Issue:
The policy vaguely mentions "secure email" but does not define the secure transmission standards, data encryption protocols, or mechanisms for tracking access and delivery confirmation. No procedures are outlined for ensuring HIPAA compliance when using digital transfers or managing printed reports.

Required Action:
Revise the policy to specify that infectious disease data is transmitted to the Arizona Department

of Health Services (ADHS) using the **IHS Secure Data Transfer Service (SDTS)**. This platform provides HIPAA-compliant, encrypted file transfer capabilities and ensures audit trail functionality.

Transmission Procedure should include:

- Reports are encrypted and uploaded to the SDTS portal (https://securedata.ihs.gov).
- The recipient (ADHS) receives an automated secure delivery alert and accesses the report through authenticated login.
- Only authorized personnel can view or download the report.
- Delivery confirmations, access logs, and audit trails are maintained.

This revision must ensure full compliance with **HIPAA transmission security (45 CFR §164.312)** and safeguard protected health information (PHI).

Required Revisions and Next Steps

To proceed, please revise the policy to:

- Add a complete Reference section citing current, authoritative standards.
- Specify staff training, education, and competency validation requirements.
- Integrate protocols for system monitoring, reporting audits, and regulatory updates.
- Standardize procedures for secure data transmission, privacy protection, and retention.

Upon revision, the policy may be resubmitted for expedited review. I am available for consultation on technical content, formatting, and compliance integration.

Policy Officer Disclaimer

This review was conducted in accordance with responsibilities outlined in the PSU Policy Management policy. Final accountability for content accuracy, legal compliance, and implementation rests with the assigned document owner and service line leadership.

Attachments and supplemental documents are not considered compliant substitutes for required policy content as defined in PSU Policy Management. All essential information must be embedded within the body of the policy to ensure clarity, traceability, and audit readiness.

Digitally signed by Kevin D. Turnage -S
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